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A BRIEF HISTORY OF THE SCHEDULING DISCOURSE IN LATE-COLONIAL INDIA (1918–1950)*

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ABSTRACT

Over a tenth of India's land mass in 14 states are notified under the Fifth and Sixth Schedules of the Indian Constitution. Tracing the genealogy of the idea of scheduling in the late colonial period (1918–1950), this essay presents a brief survey of the deliberations on the 'tribal question' in British India. Focusing mainly on the debates in the administrative realm, it offers a top-down analysis of major developments vis-à-vis the discourse on aboriginal and hill tribes as the category itself transitioned into what is now called 'Scheduled Tribes'.

I INTRODUCTION

The period of constitutional reforms in colonial India, which lasted until the dawn of a republican constitution (1918–1950), was also an era of rapid Indianisation of governmental services and devolution of powers to Indian representative

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politicians. These developments gradually eroded the near complete supremacy of the 'steel frame' of the Indian Civil Service (ICS), which was predominantly occupied by British officials.

While the increasingly vocal Indian politicians focused on their respective constituencies, the consistent demand for ensuring 'minority rights' was usually confined to the issues of Muslims and the depressed classes. Such a narrow focus did not leave room for any meaningful deliberation about traditionally marginalised communities often inhabiting the hills and forests of British India. As a result, a select ICS 'knot of men'[1] took on the mantle of voicing the interests of the aboriginal and hill tribes.[2] They argued that the aboriginal tribes constituted a distinct minority element of the Indian demography and must be provided with a territorial solution to safeguard their unique way of life from the forces of law, democracy, and organised religions. These anthropologists and administrators believed that the sympathetic European 'man on the spot' was the last bulwark protecting the interests of the aboriginal and hill tribes against those of the 'civilised' people from the plains. Deeply influenced by British colonial anthropology, this knot of men cumulatively generated an administrative discourse that set the stage for the emergence of two distinct categories of predominantly tribal areas. These areas, after decades of debates and deliberations, were finally enlisted in 1950 under the Fifth and Sixth Schedules of the Constitution of India.

Scheduling may be defined as an instrument of colonial statecraft. Through it, certain areas have been committed to a list or inventory of 'special administrative regimes' where normative laws and regulations prevalent in the rest of British India were not applicable. According to Nishant Gokhale, a historian of law, scheduling

[1] I have borrowed this expression from Eric Stokes, *The English Utilitarians and India* (Oxford University Press 1959). This group included, among others, JH Hutton and JP Mills from the Naga Hills and Sir WV Grigson and WG Archer from Central/Eastern India.

[2] Terms such as 'aboriginal' and 'backward' appear here as they were used in historical sources of the period. They reflect the language and attitudes of the time and do not represent the author's views or contemporary understandings.

is a 'legal technology' through which a disparate group of areas can be clubbed together. He also opined that the existence of this practice can be traced to the early period of East India Company rule in India.[3]

After 1936—when an expanded list of excluded and partially excluded areas under the Government of India Act 1935 was notified—the Indian nationalist political class strongly objected to the creation of these extra-constitutional land enclaves. They argued that the wholesale exclusion of such areas from democratic processes and the rule of law was an expression of the long and deliberate British policy of divide and rule. Today, a key issue in the public discourse surrounding the Scheduled Tribes is the efficacy of scheduling as an instrument of tribal governance within the constitutional apparatus of independent India.[4] Statistically, out of 640 administrative districts in India, 104 have Scheduled Areas.[5] Of these, 36 districts are fully notified—with the whole district being declared as a scheduled area—while the remaining 68 are partially notified.[6] Approximately, 11.3 per cent

[3] Personal communication with Nishant Gokhale.

[4] The Constitution of India 1950 has two lists/inventories, namely, the Fifth and the Sixth Schedules, which were formulated for the governance of predominantly tribal areas. The Sixth Schedule Areas are in four states of Northeastern India, while the Fifth Schedule Areas are mainly spread across ten states in the Central Indian tribal tracts. Having distinct colonial origins, there is very little historiographical literature on the theme of scheduling. For some recent contributions on the Sixth Schedule, see: Stephen Legg, 'Dyarchy: Democracy, Autocracy, and the Scalar Sovereignty of Interwar India' (2016) 36(1) Comparative Studies of South Asia, Africa and the Middle East 44; Shaunna Rodrigues, 'Excluded Areas as the Limit of the Political: The Murky Boundaries of Scheduled Areas in India' (2021) 25(7) The International Journal of Human Rights 1126; and Ornit Sharma, 'Chapter 6' in *How India Became Democratic: Citizenship and the Making of the Universal Franchise* (Penguin Viking 2018) 212.

[5] For this paragraph, the statistical information has been taken from CR Bijoy, 'How a History of Broken Promises Has Let Down India's Scheduled Areas' (*The Wire,* 9 November 2021) <https://thewire.in/rights/how-a-history-of-broken-promises-has-let-down-indias-scheduled-areas> accessed 14 September 2024.
Title case has been used for terms defined by the Constitution of India, such as 'Scheduled Tribes' and 'Scheduled Areas', whereas similar categories from the pre-constitutional period have been lowercased.

[6] For information and visual representation including a map of the Scheduled Areas, please see Namita Wahi and Ankit Bhatia, *The Legal Regime and Political Economy of the Land Rights of Scheduled Tribes in the Scheduled Areas of India* (Centre for Policy Research 2018). For a complete state-wise list of Scheduled Areas, see CR Bijoy, Shankar Gopalakrishnan, and Shomona Khanna, 'Annexure 7' in *India and the Rights of Indigenous Peoples: Constitutional, Legislative and Administrative*

of the total geographical area of the country has been declared as Scheduled Areas, and demographically, about 5.7 per cent of India's population—both tribal peoples and otherwise—reside here. Despite covering an extensive land area where millions of Indian citizens live, there has hitherto been no systematic study of the discourse on scheduling.[7]

This paper presents a brief survey of the constitutional deliberations between 1918 and 1950 on the 'tribal question' in British India, which until recently had been erroneously regarded solely as a debate between the Indian sociologist GS Ghurye and the British sociologist Verrier Elwin.[8] In fact, I have argued that there is not a shred of evidence to suggest that Ghurye and Elwin ever sparred with each other.[9] Indeed, while Ghurye viciously attacked Elwin through his book *The Aborigines*,[10] Elwin never responded to these personal attacks in any public or private capacity.

Provisions Concerning Indigenous and Tribal Peoples in India and their Relation to International Law on Indigenous Peoples [Asia Indigenous Peoples Pact (AIPP) 2010] 221. Both are compact and useful volumes. The latter also provides details of the constitutional orders used to notify the Fifth Schedule Areas in various states until the year 2000.

[7] The root of this keyword lies in the 14th-century Latin term '*schedula*', which is derived from '*scheda*', meaning 'a strip of papyrus'. It referred to a surface used since the ancient times by Egyptians, Greeks, and Romans for writing. *Chambers 21st Century Dictionary* (first published 2001, Allied Chambers Limited-India 2005) 1,255. I thank Dr Sourav Kumar Mahanta, an ex-Centre for Historical Studies peer, for his suggestion of including the etymology of the word.

[8] On the so-called 'Ghurye-Elwin Debate', see Anjan Ghosh, 'Whither Indian Sociology?' (1989) 1 Other Sociology; Tiplut Nongbri, 'Tribe, Caste and the Indigenous Challenge in India' in Bengt G Karlsson and Tanka B Subba (eds), *Indigeneity in India* (Kegan Paul 2006) 75–95; KS Singh, 'GS Ghurye, Verrier Elwin and Indian Tribes' in AR Momin (ed), *The Legacy of GS Ghurye: A Centennial Festschrift* (Popular Prakashan 2006) 39–45; AC Sinha, 'Colonial Anthropology vs Indological Sociology: Elwin and Ghurye on Tribal Policy in India' in Tanka B Subba and Sujit Som (eds), *Between Ethnography and Fiction: Verrier Elwin and the Tribal Question in India* (Orient Longman 2005) 71–85; Virginius Xaxa, 'Tribes as Indigenous People of India' (1999) 34(51) Economic and Political Weekly 3,589–3,595; Virginius Xaxa 'Tribes in India' in Veena Das (ed), *The Oxford Companion to Sociology and Social Anthropology in India* (OUP 2003) 373–408; Nandini Sundar, *Subalterns and Sovereigns: An Anthropological History of Bastar, 1854–1996* (OUP 1997) 180–183.

[9] Saagar Tewari, 'Framing the Fifth Schedule: Tribal Agency and the Making of the Indian Constitution' (2022) 56(5) Modern Asian Studies 1,556–1,594, doi:10.1017/S0026749X21000779.

[10] GS Ghurye, *The Aborigines – "So-called" and their Future* (Publication No 11, Gokhale Institute of Politics and Economics 1943).

Moreover, it is my position that the 'tribal question' actually signified a multifaceted debate on the pros and cons of scheduling as an instrument for providing protection to tribes. Regrettably, very few scholarly studies have offered a historically grounded understanding of a once vibrant debate on the desirability of scheduling for protecting the future of tribal communities.[11]

To address this gap in historical understanding, my recently published book empirically demonstrates how the proposal of scheduling was the real site of battle between two lobbies, namely, the anthropologists versus the nationalists.[12] Some policy-oriented secondary literature has recently emerged primarily dealing with issues of development and governance of the Scheduled Areas.[13] The scholarly world is slowly awakening to the immense research potential in the emerging sub-field of Indian tribal/Adivasi/indigenous communities. There are expansive historiographical gaps—barring one anonymous article in the late 1970s that dealt with a small part of this story[14]—and absolutely no historiographical literature that exists on the theme.[15] This article explores the constitutional discourses on the

[11] To the best of my knowledge, historiographical works on this subject are absent. The only exceptions to this rule are three works by scholars trained in the US: Poornima L Paidipaty, 'Tribal Nation: Politics and the Making of Anthropology in India, 1874–1967' (PhD Dissertation, Graduate School of Arts and Sciences, Columbia University 2010); Uday Chandra, 'Liberalism and its Other: The Politics of Primitivism in Colonial and Postcolonial Indian Law' (2013) 47(1) Law and Society Review 135–168; and Ezra Rashkow, *The Nature of Endangerment in India: Tigers, 'Tribes', Extermination & Conservation, 1818–2020* (OUP 2023). However, due to their own respective concerns and arguments, Paidipaty, Chandra, and Rashkow allude to the subject of scheduling without addressing it.

[12] Saagar Tewari, *Islands against Civilisation: Anthropology, Nationalism and the Politics of Scheduling, 1918–1950* (Orient BlackSwan 2025).

[13] Varsha Bhagat-Ganguly and Sujit Kumar (eds), *India's Scheduled Areas: Untangling Governance, Law and Politics* (Routledge 2020). For an assessment by a seasoned administrator, see Bhupinder Singh, 'The Fifth Schedule of the Indian Constitution' (2017) 59 (2) Indian Journal of Public Administration 211–227, <https://journals.sagepub.com/doi/abs/10.1177/0019556120130201?journalCode=ipaa Accessed 24 September 2024>.

[14] 'Background Notes I: The Scheduled and Tribal Areas' (1997) 23(3) Indian Journal of Public Administration 821.

[15] I am grateful to the Rights and Permissions Team at Orient BlackSwan who agreed to allow me to use segments of the monograph for this article.

notion of scheduling and the question of administration of tribal areas between 1918 and 1950.[16] It offers a top-down analysis of major developments and briefly surveys what the existing literature has broadly covered.

II 'BACKWARD TRACTS' AND THE FRAMING OF LIMITS: 'EXCLUSION' AND 'PARTIAL EXCLUSION'

The *Montague-Chelmsford Report on Indian Constitutional Reforms* (henceforth, the *Montague-Chelmsford Report*), prepared in 1918 by the British government in India to assuage the increasing demand for political reforms in return for India's strong contribution to the war effort, marked a significant moment in the history of the concept of scheduling. Until then, this discourse lay purely in the administrative domain of colonial bureaucracy. With the report's publication, however, the issue of tribal people within the British Indian Empire was put decisively in the Indian public domain for the very first time. A new term, 'backward tracts', was coined, which would characterise the areas to be scheduled.

The bedrock of the Montague-Chelmsford Reforms scheme was the objective to divide administrative subjects/departments within provinces into the two categories of 'reserved' and 'transferred' governance subjects.[17] The former were to be the exclusive domain of the colonial state (with its responsibility lying with the governor as the agent of the governor-general) and hence excluded from the reform scheme, while, in case of the latter, the responsibility was to be handed over to the popular ministries—which consisted of elected Indian representatives.[18] This arrangement came to be known as 'dyarchy'. However,

[16] For a recent contribution, see Nandini Sundar, '"We Will Teach India Democracy": Indigenous Voices in Constitution Making' (2024) 52(1) The Journal of Imperial and Commonwealth History 181, doi:10.1080/03086534.2023.2196838.

[17] After public deliberation on the report and further committee work, the British Parliament enacted the Government of India Act in 1919.

[18] Prior to this, all the legislative business at the Centre was transacted by the Governor-General in Council—a body of primarily top-notch bureaucrats who acted as the governor-general's councillors and was the supreme executive wing of the Government of India until 1919. The

within the eight provinces included for reformed provincial governments, some areas were excluded from the sway of representative electoral politics. The report stated:

> But even in the eight provinces which we have named there are included certain backward areas where the people are primitive, and there is yet no material on which to found political institutions. We do not think that there will be any difficulty in demarcating them. They are generally the tracts mentioned in the schedules and appendices to the Scheduled Districts Act, 1874, with certain exceptions and possibly certain additions which the Government of India must be invited to specify. Both the definition of these areas and the arrangements to be made for them will be matters for further consideration; but the typically backward tracts should be excluded from the jurisdiction of the reformed provincial Governments and administered by the head of the province.[19]

This semantic shift from 'scheduled districts' to 'backward tracts' is highly significant. If we do not mark out these differences in terminology, there is a real possibility of slippage into colonial connotations without realising the subtle epistemological and cognitive shift that the emergence of these new terms signified.[20] The term used for these communities till now was 'aboriginal and hill tribes', which represented a geographical imagination. But, essentially, by terming these areas as 'backward tracts', the late colonial administrative discourse set them

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governor-general, also known as the viceroy, was the Crown's representative and occupied the top position in British India. At the provincial level, the task was fulfilled by the Governor in Council, a group that advised the province's governor. There were some Indians in the Governor in Council, but they were all nominated. The Government of India Act introduced the elective principle, which meant that there were now Indian minsters who came into the legislatures through elections and hence the term 'popular'.

[19] *Montague-Chelmsford Report on Indian Constitutional Reforms* (1918) para 199.

[20] I thank fellow scholar Dr Umar Khalid for this point. In this phase of colonial statecraft, 'backwardness' as an idea needs further enquiries. For a good scholarly article on the discourse of backwardness in western India, see Abhay Datar, 'Defining Backwardness: Debates in Bombay/Maharashtra' (2017) 52(51) EPW 89.

apart from the predominantly non-tribal and settled plains.[21] While the exact contours of this backwardness were largely left undefined, backwardness was seen as a deficit in education and communities inhabiting the hills and forests were hence perceived as more backward than those in the plains. Although there is a continuity in the genealogy of key terms from the Scheduled Districts Act to constitution-making, the connotation, imagination, and the functionality of these words during constitution-making were different from what they were in the1870s.

The debate on the future administration of predominantly tribal areas was initiated by the Government of India's[22] detailed response to the report, contained in its Ninth Dispatch to the India Office in London.[23] The Governor-General in Council opined that if an area was wholly excluded from the scope of the reform scheme, it would inevitably follow that:

> (i) no legislation should be enacted, no question should be asked and no resolution should be moved, affecting such an area in the legislative council. Legislation for such an area be effected, entirely by means of regulations made by the Governor-General in Council under Section 71 of the Government of India Act, 1915.[24]
>
> (ii) the administration of such areas, as regards both reserved and transferred subjects should be carried on either by the Governor, as

[21] See the first chapter of my book, *Islands against Civilisation* (n 12).

[22] The Government of India refers to the central bureaucracy initially situated in Calcutta but subsequently transferred to New Delhi after 1911. The India Office was the arm of the British Government that oversaw the conduct of Indian affairs. The head of the former was the viceroy (formally the agent of the British Crown), while the latter was headed by the secretary of state for India, who was part of the British Cabinet.

[23] Letter from Chelmsford, CC Munro, C Sankaran Nair, WH Vincent, RA Maut, HF Howard to Edwin Montagu dated 5 June 1919, 'Ninth Dispatch on Indian Constitutional Reforms (Assam and Backward Tracts)', No 7 of 1919 in IOR/L/PJ/9/23. Unless mentioned otherwise, this entire section is based on the Ninth Dispatch.

[24] Except in the case of Darjeeling District (Bengal) and Lahaul (Punjab) to which that section did not apply.

> proposed in the Report, or as we ourselves should prefer, by the Governor in Council.
>
> (iii) budget provision for the administration should be made separately and should not be subjected to the scrutiny of the legislative council.

These restrictions were formidable enough to limit their operation only to the 'typically backward tracts'. However, the Governor-General in Council held that the future constitutional status of 'intermediate areas … not yet suited for the type of government' being proposed still hung in the balance. In the legal cartography of British India, these large areas occupied a liminal, undefined space between typically backward tracts and those proposed to be placed in the hands of elected/popular ministries. What complicated matters even further was that these areas sometimes also returned representatives to the legislative councils and hence, any wholescale exclusion was likely to raise objections from the increasingly vocal and confident Indian political class.

The subject of backward tracts was potentially contentious as Indian politicians were expected to react negatively to the colonial state's policy of keeping the administration of these areas away from the control of popular ministries. Anticipating difficulties, the Governor-General in Council remarked that the total exclusion of many of the backward areas was not feasible and would lead to much confusion and friction in the administration, which could be avoided. In such instances, it was discussed that rather than enforcing the complete set of reforms, some modifications in the general scheme could enhance suitability. Consequently, the Governor-General in Council recommended that the backward areas be divided into two categories: (a) wholly excluded areas and (b) areas where the scheme should be introduced with modifications. The latter category areas came to mean that:

> (i) Acts of the Indian or provincial legislatures may be applied wholly, with modifications, or not at all, to any part of the area- by executive order: without such an order no Act will apply automatically.
> (ii) legislation by regulation under s.71 is to be constituted for those areas where it is now permissible- Sonthal Parganas and the Assam Hills Districts.
> (iii) it is to be recognized that the Governor is to be free to override the advice of his Ministers in transferred matters affecting these areas, in virtue of his personal responsibility for the best interests of backward classes.

The Government of India defined the areas as 'wholly excluded' or 'excluded with modifications' by taking two examples—Angul from the province of Bihar and Chota Nagpur from the province of Orissa, respectively. Thus, these areas were presented as archetypal 'ideals'.

Exemplifying the case of wholly excluded areas, Angul consisted of two territorial sectors separated from each other by the province of Orissa.[25] Arguing a case for its 'wholly excluded' status and its administration by the Governor in Council rather than an elected ministry, the dispatch stated:

> Each subdivision is a network of hills, valleys, ravines, and forests, with very little cultivated land. The density of population is less than in any other district of the province, and the inhabitants are mostly aborigines or low caste Hindus, of whom a very small percentage is literate. The district is a scheduled district and deregulationized by the Angul Laws Regulation, 1913, that is, it is an area which is excluded from the operation of ordinary law. Legislation is effected by Regulation and the district is unrepresented in the legislative council.

[25] Their respective headquarters were ninety miles apart.

Thus, the chief determinants for the 'wholly excluded' status were rough geographical features that frequently also made the region 'inaccessible', agricultural backwardness, low density of population, high 'aboriginal' proportion in the population, negligible literacy levels, its legal position (whether it was deregulationised or not), and last but not the least, whether or not it had been represented in provincial councils.

The prototype for 'excluded with modifications' was the Chota Nagpur division. It consisted of five districts (Ranchi, Palamau, Hazaribagh, Manbhum, and Singhbhum) with an area of 27,000 square miles and a population of 5.5 million. The standard of cultivation varied considerably in different parts. The 'wilder' tracts of the area were inhabited almost exclusively by aboriginal and semi-aboriginal tribes. However, the division also consisted of 'a certain number of towns, the most important coal-fields in the whole of India, and an area around the Tata iron and Steel works which bids fair to become one of the most important industrial manufacturing centres in the country'.[26]

In legal terms, the whole Chota Nagpur division was notified under the Scheduled Districts Act 1874 but was not deregulationised. Legislation could not be affected by regulation as the region, though scheduled, had not been a subject of a resolution under Section 71 (4) of the Government of India Act 1915 or the provision the section re-enacted. The districts within this were represented in the provincial legislative council and the various enactments in force were of 'local application only and different in character from those in operation in other parts of the province'. Though ordinary civil and criminal procedure codes were in force in the entire division, in certain parts, the same officers administered both civil and criminal justice. In view of all these facts, the Government of India agreed with the local government's assessment that it was not advisable to wholly exclude this area

[26] This description presented an interesting imagery of Chota Nagpur as an aboriginal area dotted with 'industrial enclaves' where extraction of natural resources was underway.

from the scope of the reform scheme. On the other hand, a fear of tribal rebellion too was expressed. Thus, the government was not prepared to recommend the inclusion of the division without some 'special safeguards'. Detailing what such safeguards should be, the dispatch recommended:

> The Governor in Council should have the power to decide what legislation shall have force in the division, or any part thereof. We would give him [the governor] a power by notification to exclude the whole or any part of the area from the operation of any Act or part of an Act passed by local legislature, and also power to apply any such legislation, with any restrictions or modifications that he considers necessary, to the division or any part of it. Except for these powers of exclusion, restriction or modification, the Lieutenant Governor in Council would have no positive powers of legislating for such areas otherwise than through his legislative council and if need be his grand committee.

On the administrative side, however, the Government of India suggested that the Governor in Council being given the power to exclude any part of the division from the jurisdiction of ministers was undesirable as it could be abused. Instead, the ministers would be given jurisdiction over the whole area, but the governor would have wide discretion in varying the orders of the ministers in these areas. Moreover, as an ultimate safeguard, the governor would be permitted to re-transfer any transferred subject in these tracts if such an extreme measure became necessary.

Provincial governments responded to the reform scheme in different ways. The Government of Punjab said that Lahaul and Spiti were both scheduled districts, with Spiti being deregulationised as well. Hence, both areas should be wholly excluded. The Government of Bombay and United Provinces did not propose the exclusion of any of their areas, a recommendation that was accepted by the Government of India. The chief commissioner of the Central Provinces too did

not suggest any area for exclusion but proposed that certain tracts be represented in the legislative council by nomination rather than election. The Government of Bengal recommended the total exclusion of Chittagong Hill Tracts and Darjeeling. Somewhat later, the Government of Madras vociferously argued for the total exclusion of agency tracts and was not satisfied with mere modified exclusion.[27]

The case of the frontier province of Assam was a peculiar one. The chief commissioner of Assam, Sir Nicholas Beatson, took strong objection to the suggestion contained in the *Montague-Chelmsford Report* that the 'schedules and appendices' of the Scheduled Districts Act might form the criteria for the exclusion of areas from the scheme. Since the whole of the province of Assam was scheduled under this Act, such an interpretation would mean that all of Assam would be totally excluded from the reform scheme. This was entirely unacceptable to Assam's governor who remarked, '[A]s Assam has been included in the report along with the seven major provinces of India, the province must stand or fall along with them. The future constitution of Assam must follow the general lines of the constitutions of the other seven provinces'.[28] For Beatson, the primary consideration was to ensure that the hills were 'sympathetically administered and adequately financed.' He concluded that the whole of the province could safely be placed under the new administration of a provincial Governor in Council rather than under the centralised administration of the Governor-General in Council.[29]

Thus, at this stage of policy-making, with regard to the application of the proposals for 'exclusion' and 'exclusion with modifications', there were only a few issues that were up for debate: the 'total exclusion' of Darjeeling and the 'modified exclusion' of the Assam Hill Tracts. The first was foregrounded by the fact that the electoral rules contained no provision for the representation of Darjeeling district in the

[27] See the first chapter of *Islands against Civilisation* (n 12).
[28] Enclosure I (viii), extracted from paras 4 and 5 of a note by Sir Nicholas Beatson Bell, Chief Commissioner of Assam, dated 24 October 1918 in the Ninth Dispatch (n 23).
[29] ibid.

Bengal Council. Hence, it would have been a 'contradiction in terms to allow the reforms Scheme even partially to affect an area whose inhabitants have no voice in the Council'. In the case of Assam too, the hill tracts did not have any representatives (either elected or nominated) on the council, logically qualifying them for complete exclusion. The Government of India also recognised that complete exclusion of the hill tracts would mean setting up the paraphernalia of a reformed government for an area of just 27,000 square miles (out of a total area of 77,500 with more than 55,000 square miles being 'backward' hill tracts), thus saving itself enormous expenditure. The elevation of Assam from being a chief commissionership to a 'governor's province' under the Government of India Act 1919 further enabled the case for complete exclusion of the Assam Hill Tracts.[30]

III Backward Tracts after the Government of India Act 1919[31]

At the end of the first reform scheme, a number of notifications declaring certain areas as 'backward tracts' were issued under Section 52A (2) of the Government of India Act in 1919. They came to cover an area of 207,900 square miles and contained a population of about 13 million. Other than Burma (which had the largest stretch of such territories), backward tracts were established in 5 of the 8 provinces, covered an area of 120,000 square miles, and had a population of 11.25 million. Almost all the tracts had been scheduled districts under the Schedule Districts Act. By a notification made under Sections 5 and 5A of the Government of India Act, any enactment of British India, with restrictions and modifications, could be extended to these areas by executive order. In line with the recommendations of the provincial governments of Bombay and the Central Provinces and Berar, no areas within their territories were declared backward

[30] Assam's case is extremely interesting but also very complicated, requiring detailed enquiries. It is bound to reveal interesting genealogies of the Sixth Schedule.

[31] This section is based mainly on information contained in a note titled 'Centralisation of Backward Tracts' in KWF 71/31-R (Reforms Branch, Reforms Office, GoI 1931).

tracts. However, in the case of CP & Berar, the route of nomination over election was preferred for sending representatives to the legislative council.

The tracts were classified according to the degree of backwardness. Some areas were considered so backward that they were wholly excluded from the reforms. These were the Laccadive Islands and Minicoy (Madras), Chittagong Hill Tracts (Bengal), Angul (Bihar and Orissa), Spiti (Punjab), and all the backward tracts of the Burma Province. The tracts which were excluded with modifications were the agency tracts of Madras, Darjeeling (Bengal), Lahaul (Punjab), Chota Nagpur (Bihar and Orissa), Santhal Parganas (Bihar and Orissa), Sambalpur (Bihar and Orissa), and all the backward tracts in the province of Assam.

The next important milestone in the evolution of late-colonial administrative discourse on predominantly tribal areas was the enquiry conducted by the Indian Statutory Commission, also called the Simon Commission, which visited the country in 1928. Despite its very wide mandate of reviewing and recommending political reforms, the commission's engagement with future arrangements for backward tracts in British India was not insignificant. It toured the length and breadth of British India, including remote corners of the Naga Hills, and met frontier administrators, such as JH Hutton, who were set to play a highly consequential role. The commission also went to the Chota Nagpur Plateau and recorded evidence of a wide range of witnesses, including Christian missionaries and Adivasi politicians, who raised the demand for a separation of the plateau and Santhal Parganas from Bihar.

The main recommendations of the Simon Commission were contained in its two-volume report published in May 1930. Its primary recommendation was the near absolute centralisation of administration in territories earlier scheduled in the 1919 Act under the umbrella term 'backward tracts'. The reforms of the Government of India Act addressed questions of representation in legislative assembly, on law-making and election, whereas the primary reform element of the Simon

Commission was the centralisation of funding. It coined a new category of 'excluded areas', meaning that areas thus scheduled were to be entirely exempt from the reformed constitution of British India,[32] and the central government would assume the full charge and responsibility of their administration,[33] including the additional financial outlays.[34] The governors would act as agents of the central government for the administration of these areas.[35]

The general principle laid down by the commission was that where a backward tract was so little advanced that representative institutions could not be provided, complete exclusion must be adopted. On the other hand, in more developed backward tracts (such as Chota Nagpur, Sambalpur, and Santhal Parganas) where the aboriginal people were not fully equipped to participate in conventional constitutional politics, different arrangements were suggested to ensure their autonomy and freedom from unwarranted intervention, especially by the elected legislative councils.[36] In such 'partially excluded areas', the governor, as agent of the Governor-General in Council, would decide how far the legislation enacted in the provincial council should apply.[37] In both cases, the revenues generated by the local government were to be spent in the area. The report also carried some specific recommendations for the Central Provinces, Bengal, Bihar and Orissa, and Madras.

At the level of the central legislature, the commission recommended that the governor-general nominate 11 members to represent people from the backward tracts in the Federal Assembly.[38] The Governor-General in Council would arbiter the extent of central legislation applicable to both excluded and partially excluded areas. Deficits in the budgets of both classes would be covered from central

[32] *Simon Commission Report*, Volume II, para 128.
[33] ibid paras 129 and 130.
[34] ibid paras 132–133.
[35] ibid para 131.
[36] ibid para 132.
[37] ibid para 133.
[38] ibid para 144.

revenues. In fact, the issue of financial outlay for the scheduled areas was the chief reason behind the centralising impulse of the Simon Commission's recommendations. These areas needed funds for their development in excess of the revenue that was generated within. Additionally, the backward tracts were often situated in provinces with revenue shortfalls. In a perpetual state of deficit budget, the only feasible source of requisite funds for undertaking developmental tasks were the central revenues. The arguments and justification advanced by the commission in support of their recommendations was succinctly put in the following terms:

> The stage of development reached by the inhabitants of these areas prevents the possibility of applying to them methods of representation adopted elsewhere. They do not act for self-determination, but for security of land tenure, freedom in the pursuit of their traditional methods of livelihood, and the reasonable exercise of their ancestral customs. Their contentment depends not so much on rapid political advance as on experienced and sympathetic handling, and on protection from economic subjugation of their neighbours.
>
> The responsibility of the parliament for the backward tracts will not be discharged merely by securing to them protection from exploitation and by preventing those outbreaks which have from time to time occurred within their borders. The principal duty of the administration is to educate these people to stand on their own feet, and this is a process which has scarcely begun. It is too large a task to be left to the singlehanded efforts of missionary societies or of individual officers.[39]

In their responses, the Government of India and the provincial governments generally criticised the proposals in the *Simon Commission Report* for centralisation as unworkable and expressed their preference for maintenance of the existing system.

[39] ibid paras 128 and 129.

Among provincial governments, only the Government of Assam was in agreement with the recommendations of centralised administration of its backward tracts. Here, the problem was most extensive and hence the potential expense involved in development works was the greatest. Consequently, the 'prospect of transferring from the province to the centre the cost of administration of the areas was probably a considerable inducement'.[40]

In the early 1930s, an unprecedented feature of the British administrative discourse on the problem of Indian tribes was the constant reference to similar experiments on indigenous peoples conducted in other parts of the British Empire, especially Africa. It may be argued that an intra-empire flow of ideas was reshaping the discourse at least in the high echelons of colonial power. Suggestions poured in that a 'solution of the problems incidental to the administration of "backward tracts" or "excluded areas" might be sought along the lines followed in administering of similar areas in South Africa and Southern Rhodesia'.[41]

For instance, Section 151 of the South African Act 1909 provided for the Crown transferring from its control any native inhabited territories to the Government of the Union of South Africa. In a schedule to the Act, a description of the method of administration to be followed after the transfer was also provided. Later, the plan for the administration of native/aboriginal areas was instituted in the Native Affairs Act 1920, based on the arrangements prescribed in the aforementioned schedule. However, as South Africa was a Union, the prescribed administrative machinery was central; but in India, where the ideal being aimed at by the British was a federal government, it was more appropriate for it to be local. In the case of Southern Rhodesia, the control of the Native Department rested with the High Commissioner for South Africa. Here, all discriminatory legislation were to be reserved and laws affecting 'natives' could be repealed only by the Crown. Despite

[40] Note titled 'Backward Tracts or Excluded Areas' in KWF 71/31-R (n 31) 34.
[41] ibid 22(b)–32.

this incongruity, the overwhelming opinion within the colonial bureaucracy seemed to be that the South African model was more suitable for India.

These discussions pointed out that the problem in India arose from two causes. Firstly, that the protection of 'backward peoples' was a responsibility of the British Parliament, and, secondly, that the excluded areas were generally 'deficit' areas.[42] The totally excluded areas presented no real constitutional problem as they were excluded entirely from the reforms. However, as a slight modification, it was suggested that the provincial governor should act as an agent of the governor-general and not the Governor-General in Council. This was to ensure that the British Parliament's responsibility for these areas would then be discharged through its own agents.

The proposals for partially excluded areas presented a formidable constitutional challenge. In a nutshell, how could the British Parliament's responsibility be discharged effectively if the governor, as an agent of the Governor-General in Council or the governor-general, was to be guided by the provincial ministry? Conversely speaking, how could the governor administer these areas without consulting the ministry when these areas were represented in the legislature and when the way must be paved for their inclusion in the ordinary system of administration?[43]

Nevertheless, all such deliberations came to naught when the then British prime minister, Ramsay MacDonald, shelved the *Simon Commission Report* and its recommendations (although the nomenclature of 'excluded' and 'partially excluded' was carried forward). Subsequently, the issue of the future administration of the backward tracts in British India was given a complete miss in the first session of the Round Table Conference. The consequences of the Round Table Conference were encapsulated in a plenary session speech delivered by MacDonald on 19

[42] ibid.
[43] ibid.

January 1931. In this speech, he broadly declared the framework of the proposed constitution but did not utter a word on the issue of the future arrangements for the backward tracts.

Taking note of these omissions and the contours of the Round Table Conference scheme outlined in the prime minister's speech, the Government of India responded that no constitutional arrangements that would leave any areas outside the jurisdiction of the proposed provincial governments could be contemplated. The silence on the issue of backward tracts in McDonald's speech was being interpreted as a sign that they may not be a part of the new constitutional scheme. Hence, in June 1931, the matter was referred to the local governments again for further review.

In response, the governments of Assam and Bihar and Orissa[44] registered strong protests against doing away with the idea of special administrative regimes for the backward tracts. The latter argued that since the natives were 'not vocal and (without) political spokesman', the special arrangements had to continue. Also, the number of aboriginals was in millions, and hence it was 'more incumbent on the British Parliament to embody in the Constitution necessary provisions for the protection of their interests'.[45] They also suggested that the problem of the backward tracts should be considered by a special sub-committee of the Round Table Conference.[46]

The issue of the future of backward tracts finally made its debut in the third and final session of the Round Table Conference in 1932. NM Joshi,[47] as an Indian

[44] From 1912 onwards, Bihar and Orissa were a single entity and remained so until 1936.
[45] Letter from MG Hallett, officiating chief secretary to the Government of Bihar and Orissa, to the joint secretary to the GoI, Reforms Office, No 122-ARC, dated 9 July 1931 in F 71/31-R (Reforms Branch, Reforms Office, GoI 1931) 22–25.
[46] ibid.
[47] A member of the Servants of India Society, Narayan Malhar Joshi was a tall spokesman on labour issues. This intervention was perhaps the earliest official nationalist intervention in the discourse on scheduling.

delegate, took up the cause of increasing the representation of aboriginals in the elected provincial councils and at the Centre. In this task, Joshi was ably assisted by Amritlal Vitthaldas Thakkar of the Servants of India Society, Poona.

The 'special powers of the governor-general and governors' in relation to backward tracts was another aspect that received some attention at the third session.[48] Thereafter, the 'special responsibilities' of the provincial governors became an important part of administrative discourse on backward tracts. This provision empowered the governor-general and the provincial governors to intervene in favour of the aboriginal tribes to block or modify legislations. This was a discretionary power that could be exercised even against the advice of the Indian ministers. In choosing to act in such a manner, they were to act as agents exclusively of the British Parliament.

The sum of all deliberations in the three sessions of the Round Table Conference was encapsulated in the *White Paper on Indian Constitutional Reforms* released in March 1933.[49] Paragraphs 106–109 of the *White Paper* dealt with recommendations for excluded and partially excluded areas. The administration of excluded areas was completely entrusted to the governors, while the administration of partially excluded areas was deemed as one of their 'special responsibilities'. The *White Paper* contained staple safeguards for the governors' powers as they could repeal or amend any legislation to be applied in these areas. It also reiterated their powers to prohibit resolutions, discussions, or questions in the provincial legislature within their administration. However, the *White Paper* was silent on the question of the administration's financing. In dealing with the working of the provincial executive, paragraph 70 of the paper finally defined 'special responsibility'. The aboriginals

[48] Under *Head C – Special Powers of the Governor-General and Governors in Round Table Conference, Third Session Documents,* IOR/Q/RTC/33, 113–114.

[49] Samuel Hoare, *The White Paper on Indian Constitutional Reform*, Most Secret, CP 49(33), CAB/24/238 (memorandum by the Secretary of State for India, printed for the Cabinet, March 1933).

and the backward tracts qualified on two counts: (a) to safeguard interests of minorities and (b) to administer partially excluded areas. It was left to the governor's discretion to determine whether any of the 'special responsibilities' were applicable.[50]

The publication of the *White Paper* was met with protests from Indian political leaders. The proposals in paragraph 106–109 were deemed out of date by the Indian National Congress (hereafter, the Congress), which increasingly opposed the Government of India's policy of exclusion and partial exclusion. Another set of parleys on the issue began when the Joint Select Committee of the British Parliament took up the issue for discussion and evidence was invited from the Indian representatives. The committee's final report was supposed to provide a blueprint for drafting the Government of India Bill 1935.

The next important stage in the discourse was the debate in the British Parliament, for it was the supreme body with the responsibility of protecting the interests of aboriginal people within the British Empire. The vibrant discussions on the Cadogan Amendment[51]—which sought to massively expand the list of excluded and partially excluded areas—proved to be a turning point in the late-colonial discourse on Indian tribal populations. Between March and May 1935, when the Government of India Bill was being read at the committee stage, two key terms—'homogeneous' and 'self-contained'—were repeatedly deployed by the sparring parties. Interestingly, population figures from the 1931 census featured prominently in these discussions providing an extremely useful hint for understanding the terminologies.

Thinking through these speeches and expressions, I suggest that the term 'homogeneous' referred to tracts in British India with an overwhelming majority of aboriginal tribes, which were classed as 'totally excluded' in the 1935 Bill. The

[50] ibid.
[51] Introduced by Edward Cadogan, member of parliament.

underlying logic of total exclusion was to maintain the majority character of the population. Within this ring-fence, land could not pass to non-aboriginals; disputes could only be settled through customs rather than laws; and modern electoral democracy could be completely debarred.

The phrase 'self-contained' areas evoked considerable dissension in the British Parliament. Two interventions made in the House of Commons debate on 13 May 1935 were significant to understand the implications of this expression. Firstly, Lord Eustace Percy, referring to Rudyard Kipling's famous book *The Jungle Book*, said that it told the story of the 'aboriginal population existing in a semi-settled, semi-nomadic condition in the midst of an ordinary agricultural population'. Secondly, another stalwart of the House of Commons, Winston Churchill, while supporting the Cadogan Amendment, controversially said, '… I should not object indeed to including in it the entire scope of the great Indian peninsula'.[52] The subsequent all-India enquiry and final Order in Council dramatically expanded the number of areas classed as 'partially excluded'. Thus, a second equivalence was established between 'self-contained' areas and areas proposed for 'partial exclusion'. Interestingly, the maximum number of new areas added to this group were from Bombay and the Central Provinces and Berar, which had earlier escaped the scope of scheduling entirely. Both these large provinces not only had significant overall tribal population (Bombay had 12 per cent and the Central Provinces and Berar had 19 per cent), but in certain pockets ('self-contained' ones) aboriginal people enjoyed demographic majority. It was this principle of ensuring that the tribes can maintain their demographic majority that became the ground for their inclusion in the extended list of partially excluded areas.

Before this debate began, the original Government of India Bill 1935 had a draft Schedule Six that proposed 4 areas for total exclusion and 11 areas for partial

[52] House of Commons Debate (13 May 1935) vol 301, cols 1,411–1,412. See the first chapter of my book *Islands against Civilisation* (n 12).

exclusion. After the British Parliament intervened, the final Order in Council released in 1936 notified 8 areas to be in the excluded category and 28 in the partially excluded.[53] Thus, the parliamentary debate led to an immense increase in the extent of the scheduled areas.

IV Constitutional Deliberations on the Future Administration of Tribal Areas

The next crucial stage in the scheduling discourse began a decade later. The Second World War had ended and though Britain was victorious, the long war had broken its military and fiscal might. Thus began the process of decolonisation, initiated and accelerated by the newly elected Labour Government under Clement Attlee. The Attlee Government sent a high-powered Cabinet Mission to negotiate the transfer of power to a successor state in India. The British Cabinet Mission statement of 16 May 1946 paved the way for the final constitutional deliberations on the predominantly tribal areas of India. According to paragraph 19(iv) and 20 of the Cabinet Mission Plan, an advisory committee on the 'Rights of Citizens, Minorities and Tribal and Excluded Areas' would be constituted. It would contain full representation of the interested parties and would

> report to the Union Constituent Assembly upon the list of fundamental rights, the clauses for the protection of minorities, and a scheme for the administration of the tribal and excluded areas and to advise whether these rights should be incorporated in the provinces, group, or Union Constitution.[54]

On 24 January 1947, the Constituent Assembly of India, the body formed to draft the Constitution for independent India, decided to elect an advisory committee as per the Cabinet Mission Plan. The committee would have 13 members from 'tribal and excluded areas' who were to decide on the appropriate administrative model

[53] 'The Government of India (Excluded and Partially Excluded Areas) Order' in *Orders in Council under the Government of India Act 1935* (Manager of Publications 1937) 24–26.
[54] KM Munshi (ed), *Indian Constitutional Documents: Munshi Papers, Volume II* (BVB 1967) 30.

for tribal areas. This committee went on to issue a number of pamphlets on the subject of excluded and partially excluded areas.[55] These documents constitute the first official Indian exposition on the tribal question in the nascent stages of the constitution-making exercise. They laid down the paradigm within which the nationalists sought to resolve the problem of the 'backward tribes' in independent India.[56]

In the deliberations of the advisory committee, the issue of representational democracy for tribal areas emerged as the primary fault line, which had remained a contentious issue that divided the anthropologists and the nationalists. The committee launched a frontal attack on the advocates of tribal isolation and protection, especially the anthropologist Elwin, whose work was characterised as seeking to 'achieve their [tribal people's] freedom and happiness by shutting them off'.[57] Instead, the committee gave greater credence to the views of BS Guha, an anthropologist whose position approximated that of the Congress. Guha held that the main considerations for tribal areas should be: (1) preservation of tribal life and authority and (2) participation and gradual integration of tribes in the general life of the country. He pointed out that the United States government had followed a policy of relegating aboriginal people to sanctuaries or reservations, but the native Indian tribes had continued to decline on account of their 'lack of adaptability and loss of will to live'.[58] In its final take on the policy of isolation, the advisory committee remarked that the proposals for national parks or isolation were based on an over-statement of the case for safeguarding tribal interests. As the country was moving towards independence and sovereignty, this was irrelevant and did not

[55] *Constituent Assembly of India, Advisory Committee (Tribal and Excluded Areas), Excluded and Partially Excluded Areas (I and II)* (printed by manager, Government of India Press 1948).
[56] *Constituent Assembly of India, Advisory Committee (Tribal and Excluded Areas), Excluded and Partially Excluded Areas–II* (Government of India Press 1948). The next few paragraphs are based on this source, especially pages 4, 9, and 21.
[57] ibid. Several passages from his published works were quoted in a chapter titled 'The Policy of Isolation'.
[58] *Constituent Assembly of India* (n 55).

constitute 'practical politics'. Moreover, the argument for isolation could not be representative of the aspiration of the tribals themselves as they did not understand its implications.

At its meeting on 27 February 1947, the advisory committee set up three sub-committees: the first to consider the tribal and excluded and partially excluded areas in Assam;[59] the second to consider the tribal areas in the North West Frontier Province and Baluchistan; and the third to consider the excluded and partially excluded areas in provinces other than Assam.[60] These sub-committees were given a period of three months to tour their respective areas and submit their recommendations. They could also co-opt members from tribal areas.

By June, however, with the pronouncement of the Partition Plan by the new viceroy Lord Mountbatten, the North West Frontier Tribal Areas Sub-Committee was no longer required to undertake its task. Given the complexity of their task and the inaccessible terrain they had to traverse, the other two sub-committees overshot their deadlines. The Assam sub-committee headed by Gopinath Bordoloi submitted its report on 28 July 1947. The sub-committee headed by AV Thakkar, a leading nationalist ideologue, submitted its report in two instalments: the first interim report relating to Madras, Bombay, Bengal, Central Provinces, and Orissa

[59] The term 'tribal areas' came in as an officially sanctioned category with the Constitution of India in 1950. Before that, the terms used were 'excluded and partially excluded'. While the two groups are congruous, there is a slight difference. After the promulgation of the Constitution, the Fifth Schedule areas were termed as 'Scheduled Areas' and the Sixth Schedule Areas were called 'Tribal Areas'. The Cabinet Mission Plan's deployment of the term 'tribal areas' before its incorporation by the Constituent Assembly provides a bridge to understand the changing nomenclature.

[60] The composition of these sub-committees was (a) North East Frontier (Assam) Tribal and Excluded Areas Sub-Committee: Gopinath Bordoloi (chairman), Rev JJM Nichols-Roy, Rup Nath Brahmal, Mayang Nokcha, and AV Thakkar (b) North West Frontier Tribal Areas Sub-Committee: Khan Abdul Gaffar Khan, Khan Abdul Samad Khan, and Mehr Chand Khanna (c) Excluded and Partially Excluded Areas (other than Assam) Sub-Committee: AV Thakkar (chairman), Jaipal Singh Munda, Devendra Nath Samanta, Phul Bhanu Shah, Jagjivan Ram, Prafulla Chandra Ghosh, and Raj Krushna Bose.

in August 1947 and the second report dealing with Bihar, the United Provinces, and Punjab in September 1947.

The reports of these two sub-committees are important documents that formed the basis for the enactment of the Fifth and Sixth Schedules. Before analysing them, a few qualifications are in order.[61] Firstly, they dealt only with the British Indian provinces and hence, a third of the Indian landscape comprising of the princely states were outside their purview. Secondly, they were written in haste during a time of great political drama.

The Thakkar sub-committee comprised Jaipal Singh Munda, Devendra Nath Samanta, Phul Bhanu Shah, Jagjivan Ram, Profulla Chandra Ghosh, and Raj Krushna Bose. The co-opted members were Khetramani Panda, Sadashiv Tripathi, Kodanda Ramaiah, Sneha Kumar Chakma, and Dumber Singh Gurung. An ICS officer, RK Ramdhyani, was appointed as the secretary of the sub-committee. The members of this body were mainly Congressmen. The only Adivasi members were Munda and Devendra Nath Samanta, both of whom hailed from Chota Nagpur, and the latter also held allegiance to the Congress.

A prime item on the sub-committee's agenda was the question of introducing representational democracy through direct elections. Under the Government of India Act 1935, the excluded areas were not represented in the provincial legislatures and hence had 'no experience of local self-governing institutions of the modern or statutory type'. On the other hand, all the partially excluded areas were included in the electoral constituencies of the provincial legislatures. With the

[61] Historical understanding of the Sixth Schedule is a grey zone. For this reason, this article has looked more closely at only the Thakkar sub-committee and the Fifth Schedule and not the Bordoloi sub-committee.

exception of the agency tracts of Madras and Orissa, Santhal Parganas, and Jaunsar Bawar, the partially excluded areas were covered by local boards as well.[62]

The interim report of the Thakkar sub-committee opposed the provision for partial exclusion. It argued that ever since the system had been introduced in 1936, the representatives of partially excluded areas had not succeeded in bringing 'sufficient pressure and influence to bear on the Ministry'. Also, some partially excluded areas constituted small pockets in large districts, which often meant that their interests were given less importance compared 'to those of the larger areas in which they were contained'. Consequently, in these areas, the sub-committee recommended that rather than categorise them as partially excluded, the 'whole tribal population should be treated as a minority community for the welfare of whom certain special measures are necessary'. On the vital issue of elections, the sub-committee remarked:

> We have given serious thought to the question and have come to the conclusion that the tribals should have reserved seats in a joint electorate based on adult franchise … The case of the tribals is not essentially different from that of the Scheduled Castes and they are in fact more backward in education and in their economic conditions than the Scheduled Castes. Representation in proportion to their numbers in the legislatures, even if some of them are not vocal or able to argue their case will emphasize the importance and urgency of their problems … We do not think that the method of indirect election or nomination should be resorted to. The aboriginals have to take part in direct

[62] Local boards were local self-government bodies created in the 1880s. In eastern India, they were usually called 'district boards'.

> election some time and the sooner their training for this starts the better.[63]

In its discussion of the excluded and partially excluded areas, the sub-committee often reiterated the colonial discourse on these regions. It held that the social system of tribal people differed from those inhabiting the plains. Tribal laws of inheritance, marriage, and divorce were seen as distinct, a difference compounded by the fact that in several areas people were 'too primitive to be able to understand or make use of the complicated procedure and law of the civil, criminal and revenue courts'.[64] Consequently, a simplified system of justice was deemed necessary.

The discussion on land alienation also reiterated colonial discourse.[65] Land was seen as the 'only thing left to the aboriginal' as they did not follow non-agricultural professions. The sub-committee agreed that 'grant of the power of alienation to the tribals is certain to result in his gradual expropriation'. The report concluded that in certain areas, laws of the provincial legislature (which were likely to be based on the 'needs of the majority') should not apply automatically, at least with respect to certain subjects. Such areas were christened 'scheduled areas'.

But the sub-committee remarked that the governor's discretionary power to overrule any legislation in the scheduled areas would be undemocratic in independent India. As an alternative mechanism, it recommended the constitution of a provincial body named the 'Tribes Advisory Council' (TAC). Its primary function would be to review the suitability of laws passed by the provincial

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[63] Excluded and Partially Excluded Areas (other than Assam) Sub-Committee (Constituent Assembly of India), *Interim Report* (Manager, Government of India Press 1947). The next few paragraphs are based on this source.

[64] ibid.

[65] The colonial discourse on tribes always highlighted the centrality of land control to ensure that tribal societies continued to sustain physically and culturally. One of the reasons for scheduling was precisely the anxiety that in elected legislatures dominated by plainsmen who wanted to own more land in tribal areas, the legal checks on land alienation (protecting the tribes) would wither away.

legislature on 'special subjects' such as '(1) social matters, (2) occupation of land, including tenancy laws, allotment of land, and setting apart of land for village purposes, and (3) village management including the establishment of village panchayats'.[66] The council was to have veto rights on these matters. On other subjects, the provincial government could withhold or modify legislation on the advice of the TAC. The establishment of this body, for at least 10 years, was deemed necessary in the provinces of Madras, Bombay, West Bengal, Bihar, Central Provinces and Berar, and Orissa.

Since funds were a major cause of anxiety for the scheduled areas, the sub-committee recommended that a separate statement in the provincial budget should show the revenues derived from and expenditure incurred in these areas. In the states of the Central Provinces, Orissa, and Bihar, there was to be a separate minister in charge of the tribal areas, ideally someone from within the tribal community. Furthermore, adequate representation was to be given to tribals in government services at the level of forest guards, constables, excise peons, and clerks. The report also spoke of encouraging tribal panchayats, temperance propaganda, checking moneylending activities, and eliminating shifting cultivation. Also, developmental tasks such as construction and maintenance of roads, special allowance for officials, provision of schools, medical facilities, and water supply were 'dire needs which will doubtless make a heavy demand on the budget'. Though the sub-committee desired that the funds for such schemes should be found 'to the maximum possible extent' from the provinces, it was equally clear that unless the Central Government 'provides the necessary assistance', at least some of the provinces may find it impossible to carry them out. Thus, as a solution to the financial needs of the scheduled areas, the sub-committee recommended that 'for all schemes of development approved by it the Central Government

[66] *Interim Report* (n 63).

should contribute, in whole or in part, funds for the implementation of the development schemes'.[67]

Meanwhile, on 5 July 1947, the Indian Independence Act was passed by the British Parliament. It received royal assent on 18 July, marking an end to British rule in India. In August 1947, the two states of India and Pakistan came into being. With this, the Government of India Act 1935 and its Sections 91 and 92 relating to excluded and partially excluded areas became null and void. However, scheduling soon received a fresh lease of life when the new Constitution of India adapted the protective provisions of these sections to meet the political exigencies of the fledgling Indian nation state.

In its final report submitted to the advisory committee in September 1947, the Thakkar sub-committee dealt with the issue of Jharkhand, then a part of the Bihar Province, in some detail. It remarked that Bihar contained 'the largest compact block of territory comprising any scheduled area in India'.[68] Here again, the issue of Christian tribal communities featured prominently. They were educationally and economically advanced as compared to non-Christian tribals as well as more politically organised. The second important aspect that the sub-committee reported on concerned a general feeling among the inhabitants of the larger Chota Nagpur region that they had 'little share in the administration commensurate with its area, population and industrial importance'. Their role in the 'separatist' Jharkhand movement, as an 'extreme expression of the discontent prevalent in Chota Nagpur' was also discussed, and it was conceded that the movement was 'capturing the imagination' of the tribals.

Sub-committee member Munda added a note of dissent to the Thakkar report. He expressed discontent that a large portion of previously declared partially excluded

[67] ibid.

[68] B Shiva Rao (ed), *The Framing of India's Constitution: Select Documents, Vol 3* (first published in 1967, Universal Law 2004) 774. The next two paragraphs draw from this report, 764–772.

areas were de-scheduled. Munda claimed that all the witnesses examined by the sub-committee were 'emphatic that the Chota Nagpur Division as a whole should be scheduled and no district or territory should be excluded from the scheduled status'. In his opinion, the TAC's veto power was essential to protect the 1.5 million Adivasis of the Manbhum, Hazaribagh, and Palamau districts, which had been de-scheduled. He also proposed that the Indian government should claim back Chittagong Hill Tracts from East Pakistan and the tribal tract in the Mirzapur district of the United Provinces should be transferred to the scheduled areas of the Chota Nagpur Plateau. In his response to Munda, Thakkar side-stepped him by asserting that none of the witnesses examined by the sub-committee were explained that their task was to recommend 'scheduling' of certain areas in the different provinces.

V The Final Framing of the Fifth and Sixth Schedules

On Sardar Patel's suggestion, a joint meeting of both the sub-committees headed by Bordoloi and Thakkar was held on 25 August 1947. This meeting summed up the problem of backward areas in the following manner:

> The areas inhabited by the tribes, whether in Assam or elsewhere, are difficult of access, highly malarial and infested also in some cases by other diseases like yaws and venereal disease and lacking in such civilizing facilities as roads, schools, dispensaries and water supply. The tribes themselves are for the most part extremely simple people who can be and are exploited with ease by plainsfolk, resulting in the passage of land formerly cultivated by them to money-lenders and other erstwhile non-agriculturists. While a good number of superstitions and harmful practices are prevalent among them, the tribes have their own customs and way of life with institutions like tribal and village panchayats or councils which are effective in smoothing village administration. The sudden disruption of the tribals' customs and ways by

> exposure to the impact of a more complicated and sophisticated manner of life is capable of doing great harm. Considering past experiences and strong temptation to take advantage of tribals' simplicity and weaknesses, it is essential to provide statutory safeguards for the protection of the land which is the mainstay of the aboriginal's economic life and for his customs and institutions which, apart from being his own, contain elements of value.[69]

Here, we can see that the constitution-makers were employing almost exactly the same language, stereotype, and imagery for tribal people as the colonial state did in its paternal avatar. 'Inaccessibility', 'promiscuity' (yaws, venereal diseases), and 'unhealthiness' (malaria) yet again became the standard tropes for the construction of a frontier imagination. In these deliberations, Munda was often the lone dissenting voice who articulated the aspirations of his constituency by the consistent application of the term 'Adivasi'. The term emphasised the autochthonous status of local communities and gave them a sense of rooted territorial identity in the domain of representative democracy.

The joint meeting acknowledged that protection of land, backwardness, illiteracy, and lack of medical aid and communication were common issues and concerns in these different regions. Nevertheless, there were certain fundamental differences between the tribal areas in Assam and those situated in other provinces. The Assam Hills and Frontier Tracts were distinctive as they were:

> divided into fairly large districts inhabited by single tribes or fairly homogeneous groups of tribes with highly democratic and mutually exclusive tribal organization with very little of the plains leaven which is so common a feature of the corresponding areas, particularly the partially excluded areas of other Provinces. The Assam Hill districts contain, as a rule, upwards of 90 per cent of tribal population whereas, unless we isolate small areas, this is

[69] ibid 774.

> generally not the case in other Provinces. The tribal population of other Provinces has moreover assimilated to a considerable extent the life and ways of the plains people and tribal organizations have in many places completely disintegrated. Another feature is that some of the areas in Assam like the Khasi Hills or the Lushai Hills, show greater potentialities for quick progress than tribes in the other Provinces. They may also be distinguished by their greater eagerness for reform in which they have a dominant share than the apathy shown by the tribals of some other Provinces. Having been excluded totally from the ministerial jurisdiction and secluded also from the rest of the Province by the Inner Line system, a parallel to which is not to be found in any other part of India, the excluded areas have mostly been anthropological specimens: and these circumstances together with the policy of officials who have hitherto been in charge of the tracts have produced an atmosphere which is not to be found elsewhere.[70]

This extract is helpful to delineate the decisive factors that accounted for the inclusion of tribal areas in northeastern India under the provisions of the Sixth Schedule of the Indian Constitution. Firstly, the areas so selected had 'homogeneous' populations of above 90 per cent. Secondly, these areas had maintained their distinctive 'tribal' organisation. The 'inner-line' policy of the colonial administrators had managed to stave off migration of outsiders into these 'isolated' tracts, which, of course, was instrumental in maintaining the homogeneity of their population as well as the continuance of tribal organisation.[71] Thirdly, the 'greater eagerness for reform' might be attributed to the influence of Christian missionaries whose work gradually produced a local educated elite amongst the tribes. Members of the meeting argued that unparalleled conditions such as these

[70] ibid.

[71] In the year 1874, in the then newly created province of Assam, certain hilly areas were made out of bounds for any outsider. People who wished to enter these zones had to procure an inner-line permit. Even today, many places in the northeastern tribal belt have the inner-line permit system in place.

necessitated the establishment of special local councils, which 'in their separate hill domains will carry on the administration of tribal law and control the utilization of village land and forest'.[72] These decisive factors lay the groundwork for the creation of the Sixth Schedule of the Indian Constitution.[73]

Subsequently, on 5 September 1949, the draft Fifth Schedule was tabled before the Constituent Assembly by the chairman of the Drafting Committee, BR Ambedkar.[74] Ambedkar introduced three important changes to the original draft. Firstly, the provision for a TAC in every state that had scheduled areas or scheduled tribes was amended and the matter was left to the discretion of the country's president. A second amendment converted the TAC into a toothless body as it gave the governor the discretion to overrule the council's advice on laws made by the Indian Parliament or the local legislature. Ambedkar said that it was 'much better' that 'his [Governor's] discretion should not be controlled absolutely'. Thirdly, the original draft did not allow for amendments to the Fifth Schedule. Later, an amendment was moved to this effect, enabling the Parliament to do so with a simple majority. Ambedkar deemed that the Parliament should have this power as 'it is no use creating a sort of a State within a State … [The situation] should not be stereotyped for all times and it should be open to Parliament to make such changes as time and circumstances may require'.[75]

These amendments drew the ire of Munda, especially the second amendment converting the TAC into a shadow of its original image. While moving a series of

[72] (n 68) 772.

[73] On Assam, see: Suryasikha Pathak, 'Tribal Politics in the Assam: 1933–1947' (2010) 45(10) Economic and Political Weekly; and Sriram Ananthanarayanan, 'Scheduled Tribe Status for Adivasis in Assam' (2010) 33(2) South Asia: Journal of South Asian Studies 290.

[74] Apparently, the amendments were made rather surreptitiously, and Munda was not kept in the loop. The modified Fifth Schedule was sent to the Constituent Assembly members on Friday, 2 September 1949, and the final discussion was conducted on Monday, 5 September.

[75] *Constituent Assembly Debates*, *Book No 4, Vol No IX* (30 July 1949 to 18 September 1949) (Sixth Reprint, Lok Sabha Secretariat 2014) 969.

five amendments, which would restore the potency of the council, Munda gave a scathing speech:

> I find that this new proposed Fifth Schedule has, somehow or other, perhaps without meaning it, emasculated the Tribes Advisory Council. The whole pattern of the original draft was to bring the Tribes Advisory Council into action. It could initiate, originate things, but somehow or other, the tables have now been turned. The initiative has been placed in the hands of the Governor or Ruler of the State. I regret this is a situation I cannot accept, and, while I say this, Mr. President, I would like to state it is a matter of regret I have to tell the House that, for the last days secret talks and conferences have been going on among certain people. I have not been consulted. It cannot be said that all parties were consulted. I certainly was not brought to any of those conferences. Suddenly a bomb shell is thrown by way of the new proposed Fifth Schedule. I do not grumble about the Fifth Schedule. But what I say is there is plenty of scope for improving the Fifth Schedule. I as an Adivasi had and must have the first claim to be consulted in the proposed change. … I want that the Tribes Advisory Council should be effective and have a real say in what is being done … As I have already stated, there are only two principles involved in my five amendments: first that the Scheduled Tribes, all of them, should be benefitted by the provisions of the Fifth Schedule and, secondly, that the Tribes Advisory Council should be a reality and not a farce. Let us not give it a big name, without any powers to do things.[76]

Munshi of the Drafting Committee gave two reasons for revising the Fifth Schedule. Firstly, the earlier draft was a 'uniform stereotyped code for the whole country', while in every province, the tribal problem showed specific variations. Secondly, while the earlier draft only related to the provinces, the political set-up

[76] ibid 978.

had undergone a massive change as a result of the accession of princely states into the Union of India. Several of them had large populations of tribal people and it was essential to have one kind of scheme for the whole country.[77] Of such a persuasion, Shibban Lal Saksena said:

> The existence of scheduled tribes and the scheduled areas are a stigma on the Hindu religion. That these brethren of ours are still in such a sub-human state of existence is something for which we should be ashamed. Of course, all these years this country was a slave of the British, but still we cannot be free from blame. I therefore think Sir, that these scheduled tribes and areas must as soon as possible become a thing of the past. They must come up to the level of the rest of the population and must be developed to the fullest extent. I only want that these scheduled tribes and scheduled areas should be developed so quickly that they may become indistinguishable from the rest of the Indian population and that this responsibility should be thrown on the Union Government and on the Parliament.[78]

In a paper on 'Exploitation in Chota Nagpur: the Nemesis', AK Dhan, former vice chancellor of Ranchi University and former member of the Union Public Service Commission, said:

> injustice to the tribals had been done even by the Constituent Assembly which drafted the country's constitution. When matters pertaining to tribals came for discussion anticipation and interest decreased out of total membership of 324 to only 103 members. Even out of 103, no less than 66 spoke only once or twice. Thus only 33 members spoke on more than two occasions, which was just 9 per cent of the total membership of this august body. Mr. Jaipal Singh and Mr. Samanta had given dissenting reports with

[77] ibid 999.
[78] ibid 981.

regard to recommendation of sub-committees on tribal issues. But their views were not considered at all.[79]

VI Conclusion

On 26 January 1950, with the promulgation of the Constitution of India, a sovereign republic was born, which guaranteed a different administrative and legal framework for tribal areas in the form of the Fifth and Sixth Schedules. It should be noted that among all the minority elements of Indian demography, only the aboriginal and hill tribes, now re-christened as 'Scheduled Tribes', were provided with a territorial solution in this historic document. A vigorous and vibrant set of debates between anthropologists, administrators, and nationalists preceded this moment. In my book, I have shown how behind the emergence of the category of Scheduled Tribes lies a story of intellectual ferment, political mobilisation, and cultural assertiveness that eventually resulted in a constitutional solution. In reconstructing the legal and political transitions that connect colonial and independent India, an understanding of the forces and frameworks that shape the tribal predicament even today becomes imperative.

We often assume that the basic framework for the provisions of the Fifth and Sixth Schedules of the Constitution were modelled on the proposals for partially and totally excluded areas respectively, as provided for under the Government of India Act 1935. Another assumption masquerading as common sense is that the 300-odd members of the Constituent Assembly sat together and created a novel solution for safeguarding the interests of the tribal communities. However, had the process taken place solely in the physical hall where the assembly sat and deliberated, the provisions for scheduling would have never found a place in the Indian Constitution, given that the Congress had, in principle, opposed the instrument of scheduling.

[79] AK Dhan quoted in Janak Singh, 'Jharkhand Mukti Morcha: Past, Present and Future' *The Times of India* (8 December 1989) 11.

Instead, the protective provisions for Scheduled Areas within the Constitution of India was the product of a historical process, the beginning of which has to be traced from at least the Montague-Chelmsford Reforms. At every stage of constitution-making, committees and enquiries added layers of ideas to the discourse. The story of scheduling is, therefore, a palimpsest of repeated deliberations that can only be understood by a close historical examination of the trajectories of anthropological thought and nationalist politics. Both sides deployed varying notions of frontier, isolation, inaccessibility, and, perhaps most importantly, 'backwardness'. Their intersections produced a series of imaginations about the aboriginal tribes and shared points of similarities as well as contrasts.

In the tumultuous period after the 1937 elections, however, this consensus between the two lobbies (anthropologists and nationalists) broke down as they became engaged in a tug-of-war with each other. Particularly after the end of the Second World War, several new actors such as the communists (in the Telangana, Tebhaga, and Warli Revolts) and the Adivasi Mahasabha (in Chota Nagpur, Santhal Parganas, and the Eastern States) further sharpened the contradiction in the Congress nationalists' claim to represent all Indians, including the aboriginal tribes. These processes dramatically altered the contours of the tribal question in India. More than anything, it was the political expediency of the contingent political conditions and negotiations that ultimately forced the nationalist elite to co-opt and adapt the idea of scheduling into a form that finally found a place in the Indian Constitution. Thus, the making of the Fifth and Sixth Schedules was not merely shaped by intellectual and discursive exercises, but also by the dynamics outside the assembly hall that, to a large extent, determined which ideas were adopted, discarded, and/or modified. Amid this state of flux in the late 1940s, the Constituent Assembly and the background work conducted by its sub-committees

selectively appropriated from the preceding discourses and wove them into the fabric of the Indian Constitution.*

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